DRUG INFLUENCE EVALUATION

Evaluator: Sgt. Barry Dixson, Chaves Co. | DRE No. 8744 | Rolling Log No. 05-220 | Session XIV-#1

Recorder/Witness: Tpr. Michael Champion | Crash: ☒ None ☐ Fatal ☐ Injury ☐ Property | Case # 05-15153

Arrestee's Name (Last, First MI): Hoeckle, Rebecca S. | DOB: 9-23-62 | Sex: F | Race: I | Arresting Officer (Name, ID No.): Tpr. Michael Champion, NMSP

Date Examined/Time/Location: 7/28/05, 2030 hrs, Chaves Co. Jail | Breath Results: ☐ Refused Instrument # 18340 0.00% | Chemical Test ☐ Refused ☒ Urine ☐ Blood

Miranda Warning Given: ☒ Yes ☐ No By: Tpr. Champion | What have you eaten today? When? "Nothing, I'm fasting" | What have you been drinking? How much? "I don't drink" | Time of last drink? N/A

Time now? About 7pm" | When did you last sleep? Last night | How long? 6-7 hrs | Are you sick or injured? ☒ Yes ☐ No Upset Stomach | Are you diabetic or epileptic? ☐ Yes ☒ No

Do you take insulin? ☐ Yes ☒ No | Do you have any physical defects? ☐ Yes ☒ No | Are you under the care of a doctor or dentist? ☐ Yes ☒ No

Are you taking any medication or drugs? ☐ Yes ☒ No | Attitude: Withdrawn, Distracted | Coordination: Very poor, barely stand

Breath: Sour, rancid | Face: Flushed

Speech: Rapid, stuttering | Eyes: ☐ Reddened Conjunctiva ☒ Normal ☐ Bloodshot ☐ Watery | Blindness: ☒ None ☐ Left Eye ☐ Right Eye | Tracking: ☒ Equal ☐ Unequal

Corrective lens: ☒ None ☐ Glasses ☐ Contacts, if so ☐ Hard ☐ Soft | Pupil size: ☒ Equal ☐ Unequal, (explain) | Able to follow stimulus: ☒ Yes ☐ No | Eyelids: ☒ Normal ☐ Droopy

HGN

	Left Eye	Right Eye
Lack of smooth pursuit	No	No
Maximum deviation	No	No
Angle of onset	None	None

Vertical Nystagmus ☐ Yes ☒ No

Convergence: Right eye / Left eye

Pulse and time:
1. 108 / 2040
2. 112 / 2057
3. 104 / 2112

One Leg Stand: Test stopped

Romberg Balance: Test stopped. Unable to stand

Walk and Turn test: Test stopped

Cannot keep balance: ✓✓✓

Starts too soon:

	1st Nine	2nd Nine
Stops walking		
Misses heel to toe		
Steps off line		
Raises arms		
Actual # steps		

L	R	
☐	☐	Sways while balancing
☐	☐	Uses arms to balance
☐	☐	Hopping
✓✓✓	☐	Puts foot down

Type of footwear: Moccasins

Internal clock: N/A (Est. as 30 seconds)

Describe Turn: N/A

Cannot do test (explain): Test stopped for safety reasons

Nasal area: Clear

Draw lines to spots touched

Pupil Size	Room Light	Darkness	Direct
Left	7.0	8.5	8.0
Right	7.0	8.5	8.0

Oral cavity: Clear

Hippus: ☐ Yes ☒ No | Rebound dilation: ☐ Yes ☒ No | Reaction to Light: Normal

Blood pressure: 148 / 104 | Temperature: 100.0 °F

Muscle tone: ☐ Near normal ☐ Flaccid ☒ Rigid

Comments: Rigidity in arms

RIGHT ARM / LEFT ARM: No visible marks

What medication or drug have you been using? How much? "My medium doesn't permit drugs." | Time of use? N/A | Where were the drugs used? (location) N/A

Date/Time of Arrest: 7/28/05 1930 hrs. | Time DRE Notified: 2010 hrs. | Evaluation Start Time: 2030 hrs. | Time Completed: 2135 hrs.

DRE signature/Inspector rank: Sgt. B. Dixson | ID # | Reviewed by: L. Murray Carol, APD

Opinion of evaluator: ☐ Rule Out ☐ Medical ☐ Alcohol ☐ CNS Depressant ☐ CNS Stimulant ☒ Hallucinogen ☐ Dissociative Anesthetic ☐ Narcotic Analgesic ☐ Inhalant ☐ Cannabis

HALLUCINOGENS

DRUG INFLUENCE EVALUATION NARRATIVE

Suspect: Hoeckle, Rebecca S.

1. **LOCATION:** The evaluation of Rebecca Hoeckle took place at the Chaves County Jail.

2. **WITNESSES:** The arresting officer, Trooper Michael Champion of New Mexico State Police witnessed and recorded the evaluation.

3. **BREATH ALCOHOL TEST:** Trooper Champion administered a breath test to Hoeckle with a 0.00% result.

4. **NOTIFICATION AND INTERVIEW OF THE ARRESTING OFFICER:** Writer was contacted by Trooper Champion and requested to conduct a drug evaluation on Hoeckle. Writer contacted Trooper Champion at the jail where he advised that he had found the suspect stopped at a green light in downtown Roswell. When contacted, the suspect appeared dazed and disoriented. She pointed to the traffic light and told Trooper Champion that "God is light and the light is God." She was unable to perform the roadside SFST's and was arrested for DUI.

5. **INITIAL OBSERVATION OF SUSPECT:** The suspect was seated next to Intoxilyzer and was staring straight ahead. She slowly turned and asked "Are you God?" Writer replied by giving her my name and asking for consent to conduct a drug evaluation on her. She replied, "The gods sent you therefore you must be good." Her speech was rapid and she stuttered slightly.

6. **MEDICAL PROBLEMS AND TREATMENT:** The suspect indicated that she had an upset stomach and was not feeling good.

7. **PSYCHOPHYSICAL TESTS:** The suspect was unable to stand without assistance. It was necessary to terminate the Romberg Balance, Walk and Turn and One Leg Stand tests for her safety. The Finger to Nose test was conducted while she was seated. She missed the tip of her nose on all six attempts.

8. **CLINICAL INDICATORS:** The suspect's pupils were dilated in all three lighting conditions. Her pulse, blood pressure and temperature were above the normal ranges.

9. **SIGNS OF INGESTION:** The suspect's breath was sour smelling and was rancid.

10. **SUSPECT'S STATEMENTS:** The suspect stated she was fasting for religious reasons and that her medium forbids the use of alcohol and drugs. She further stated that her religious leader is a man "whose body is of fire and air and whose spirit is of light." She also indicated that she had just attended a service conducted by the medium.

11. **DRE'S OPINION:** In my opinion Hoeckle is under the influence of a Hallucinogen and unable to operate a vehicle safely.

12. **TOXICOLOGICAL SAMPLE:** The suspect provided a urine sample.

13. **MISCELLANEOUS:**